



CHAPTER xxxi.

An Act to extend the time for the construction of the works authorised by the *Ystradfellte Water Act 1902* and to confer further powers upon the Neath Rural District Council in regard to their water undertaking and for other purposes. A.D. 1912.
[7th August 1912.]

WHEREAS the rural district of Neath in the county of Glamorgan is under the jurisdiction of the Neath Rural District Council (in this Act called "the Council") and the affairs of the rural district consisting of the parish of Ystradfellte in the county of Brecknock are administered by the Council in pursuance of the Ystradfellte (Temporary Administration of Rural District) Order 1894 made by the Local Government Board under section 24 of the Local Government Act 1894:

And whereas the Council are supplying water under the provisions of the Public Health Act 1875 and to enable them to afford an adequate supply of water they were authorised by the Ystradfellte Water Act 1902 to construct waterworks which are in course of completion and it is expedient to extend the time limited by that Act for the construction and completion of such works and to confer further powers upon the Council in regard to their water undertaking:

And whereas it is expedient that the Council should be empowered to take a limited quantity of water from the River Tringarth before the completion of the Ystradfellte Reservoir the construction of which was authorised by the said Act of 1902 and that the provisions of that Act should be amended as by this Act provided:

And whereas in order to facilitate the construction of the waterworks authorised by the said Act of 1902 the Council have constructed a tramroad in the line of Road No. 1 authorised by that Act and upon lands acquired by them under the provisions

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And whereas the Council were by the said Act of 1902 authorised to borrow the sum of one hundred and sixty-two thousand three hundred pounds for the purchase of lands for and the construction of the works authorised by that Act and for the laying down of mains and the construction of other waterworks but that sum has been found to be insufficient for the purposes for which it was authorised to be borrowed and estimates have been prepared by the Council as to the additional money (including the sum of fifty thousand pounds as to which a temporary loan has been sanctioned by the Local Government Board) which will be required for the construction and completion of the works authorised by the said Act of 1902 and such estimates amount to one hundred and forty-four thousand pounds:

And whereas the works included in such estimates are permanent works and it is expedient that the cost thereof be spread over a term of years:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas plans and sections showing the lines and levels of the tramroad which the Council are authorised by this Act to maintain and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Brecknock and are herein-after respectively referred to as the deposited plans sections and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PRELIMINARY.

1. This Act may be cited as the *Ystradfellte Water Act 1912* and the *Ystradfellte Water Act 1902* and this Act may be cited together as the *Ystradfellte Water Acts 1902 and 1912.*

Short and
collective
titles.

2. The Lands Clauses Acts except section 127 (Lands not wanted to be sold within ten years after expiration of time limited for completion of works or in default to vest in owners of adjoining lands) of the Lands Clauses Consolidation Act 1845 (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act.

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Incorporation of Acts.

3. In this Act unless the subject or context otherwise requires the expressions "the Council" and "statutory security" have the meanings assigned to them respectively by section 3 (Interpretation of terms) of the Act of 1902:

Interpretation.

"Statutory borrowing power" means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

"The Act of 1902" means the Ystradfellte Water Act 1902;

"The tramroad" means the tramroad the construction of which is sanctioned and confirmed by this Act and any works connected therewith;

"The tribunal" means the jury arbitrators umpire or other authority to whom any question of disputed purchase money or compensation under this Act is referred.

PROVISIONS AS TO WATERWORKS.

4. The period limited by the Act of 1902 for the completion of the works authorised by that Act is hereby extended until the expiration of five years from the date of the passing of this Act.

Extension of time for construction of works.

5.—(1) Notwithstanding anything contained in the Act of 1902 but subject to the provisions of the sections of this Act of which the marginal notes respectively are "For protection of

Temporary power to take waters.

A.D. 1912. — Curtis's and Harvey Limited" and "For protection of Viscount Tredegar" the Council may until the time limited by this Act for the completion of the Ystradfellte Reservoir (Reservoir No. 1 authorised by the Act of 1902) shall have expired or until the said reservoir shall have been completed and filled with water whichever may first happen collect impound take use divert and appropriate for the purposes of their water undertaking from the River Tringarth by means of Conduit No. 1 authorised by the Act of 1902 and any subsidiary works in connexion therewith on any and every day a quantity of water not exceeding one half of the total flow of water down that river immediately above the point of such abstraction on such day if and so long as a quantity of water equal to or exceeding in amount one half of such total flow continues to flow down the said river past the said point of abstraction.

(2) The Council shall construct and so long as they take water under the provisions of this section maintain—

(a) A suitable self-recording gauge or appliance for measuring the quantity of water so taken by means of the said conduit and works:

(b) A weir and measuring gauge at or near to the point of intake into the said conduit for the purpose of measuring the quantity of water passing down the said river and such weir and measuring gauge shall be constructed and maintained in such a way as to ensure that not less than half the total quantity of water flowing down the said river at a point immediately above the said point of abstraction shall continue to flow down the same immediately below that point.

(3) The said gauges appliances and weir shall be open to the inspection and examination of any officer of the Board of Agriculture and Fisheries and of the several persons or companies for the time being interested in the water to be discharged or to flow through or over the same.

(4) If at any time any such gauge appliance or weir shall be out of repair or in an unfit condition for the purpose for which it is intended the Council shall forthwith put the same in fit repair and condition.

(5) In the event of any difference or disagreement between the Council and the persons or companies mentioned in subsection (3) of this section or any of them with respect to the

construction maintenance or use of such gauges appliances and weir such difference or disagreement shall be determined by an engineer to be agreed upon between the parties in difference or failing such agreement by an engineer to be appointed on the application of either party after not less than seven days' notice to the other party by the President of the Institution of Civil Engineers. A.D. 1912.

(6) In case the Council omit or fail to discharge or permit to flow the quantity of water by this section required to be discharged or to flow over or through the said weir and measuring gauge the Council shall for every day on which such omission or failure shall occur pay a penalty not exceeding ten pounds to the occupiers of any mills or works existing at the passing of this Act on the course of and to the owners of any canal entitled at the passing of this Act to take water from the Rivers Tringarth Mellte or Neath who may have sustained loss by such omission or failure.

(7) The provisions of this section shall be accepted and taken as full compensation for all water by this section authorised to be diverted taken used or appropriated by the Council.

6. The following provisions for the protection of Curtis's and Harvey Limited (in this section referred to as "the company") shall unless otherwise agreed between the Council and the company apply and have effect:—

For protection of Curtis's and Harvey Limited.

(1) The Council shall not be entitled to exercise the powers conferred upon them by subsection (1) of the section of this Act of which the marginal note is "Temporary power to take waters" on any day (other than a Sunday) without the previous consent in writing of the manager for the time being of the company's powder mills at Ystradfellte Provided always that such consent shall not be withheld if the taking of water by the Council will not interfere with or affect the working of any of the mills of the company Provided also that such consent shall not be necessary if and whilst and so often as there shall be water flowing over the existing bye-wash or weir of the lower dam on the River Mellte belonging to the company and adjoining or near to their works on that river:

(2) If under the provisions of subsection (1) of this section the manager for the time being of the company's

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mills shall withhold his consent to the taking of water by the Council and any question shall arise as to whether the taking of such water by the Council will interfere with or affect the working of the company's mills such question shall be referred to the arbitration of a single arbitrator to be appointed by agreement between the Council and the company or failing agreement by the President of the Institution of Civil Engineers and subject to the aforesaid provisions the Arbitration Act 1889 shall apply to any such arbitration:

- (3) Nothing contained in this section shall limit or affect the powers of the Council to collect impound take use divert or appropriate waters under the provisions of the Act of 1902.

Application of provisions of Waterworks Clauses Act 1847 to conduits.

7. The provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets shall apply with the necessary modifications to the construction laying down erection and maintenance in any streets or roads of the conduits authorised by the Act of 1902.

Power to maintain tramroad.

8. The construction by the Council of the existing tramroad next herein-after described is hereby sanctioned and confirmed and the Council may maintain and continue work and use with locomotive-engines carriages waggon and trucks the tramroad in the lines and according to the levels shown on the deposited plans and sections with all proper sidings junctions passing places approaches bridges telegraphic and telephonic wires apparatus works and conveniences connected therewith The tramroad herein-before referred to the construction of which is sanctioned and confirmed by this Act is—

A tramroad 6 miles 7 furlongs 9·5 chains or thereabouts in length situate in the parishes of Penderyn Cantreff and Ystradfellte all in the county of Brecknock commencing by a junction with an existing tramroad or railway described in the section of this Act whereof the marginal note is "Running powers over tramroad or railway" at a point 228 yards or thereabouts measured in a westerly direction from the north-east front corner of the Lamb Inn at Penderyn and terminating on the east side of the River Tringarth at a point 1200 yards or thereabouts measured in a northerly direction from the north-east corner of Blaentringarth Farm House:

Provided that no telegraphic or telephonic wires apparatus or works constructed by the Council under the powers conferred upon them by this section shall be used for the purpose of transmitting telegrams which are within the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869. A.D. 1912.

9. Subject to the provisions of this Act the Council may purchase and take by compulsion or agreement such of the lands and hereditaments shown on the deposited plans and described in the deposited book of reference as they may require for the purposes of this Act or any estate or interest in over or affecting the same. Acquisition of lands.

10. The powers of the Council for the compulsory purchase of lands under this Act shall not be exercised after the expiration of three years from the passing of this Act. Period for compulsory purchase of lands.

11. The following provisions of the Act of 1902 shall with any necessary modifications extend and apply to this Act as if the same were re-enacted in this Act (namely):— Application of provisions of Act of 1902.

Section 8 (Power to acquire easements only);

Section 15 (Persons under disability may grant easements &c.);

Section 16 (Power to sell &c. lands).

12. For the purpose of determining any question of disputed purchase money or compensation payable in respect of lands taken in pursuance of this Act the following provision shall apply and for the purposes of this section the expression "owner" shall mean the owner of and persons interested in the lands required by the Council:— Provisions as to compensation.

The tribunal shall not award any sum of money for or in respect of any improvement alteration or building made or erected or for or in respect of any interest in the land created after the first day of January one thousand nine hundred and twelve if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made erected or created with a view to obtaining or increasing compensation under this Act.

13.—(1) The tribunal shall if so required by the Council award and declare whether a statement in writing of the amount Costs of arbitration &c. in certain cases.

A.D. 1912. — of compensation claimed has been delivered to the Council by the claimant giving sufficient particulars and in sufficient time to enable the Council to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Council had been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant.

(2) Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Council to amend the statement in writing of the claim delivered by him to the Council in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Council if they object to the amendment and such amendment shall be subject to such terms enabling the Council to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case.

(3) Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice to the effect of this section.

Tramroad
crossing
public roads.

14.—(1) The tramroad where laid across any public road on the level shall be maintained in such manner that the uppermost surface of the rails shall be on a level with the surface thereof and no truck carriage or engine shall be allowed to stand on any part of any public road crossed on the level by the tramroad.

(2) Where the tramroad crosses on the level any public highway the Board of Trade may require the Council to comply with the following provisions (that is to say):—

(A) Cattle guards or other suitable contrivances shall be constructed at each side of the road and so maintained as to prevent cattle or horses on the road from entering upon the tramroad:

(B) At each of two points one three hundred yards along the tramroad in one direction from the level crossing and the other three hundred yards along the tramroad

in the other direction from the level crossing there shall be erected and maintained a white post standing five feet above ground and bearing upon it and so as to be plainly legible by the driver of an engine approaching the level crossing a statement indicating the near approach to the level crossing: A.D. 1912.

- (c) At each of two points one fifty yards or thereabouts along the road in one direction from the point of crossing and the other fifty yards or thereabouts along the road in the other direction from the point of crossing there shall be erected and maintained by the Council a notice board cautioning the public to beware of the trains.

15. The Council may enter into and carry into effect agreements with local authorities and with any company authority or person who own or use any railways tramroads or tramways with reference to the working use running over maintenance and management jointly or otherwise of the tramroad and the supply and maintenance by the working party under and during the continuance of any such agreement as aforesaid for the working of the tramroad of engines stock and plant necessary for the purposes of such agreement and otherwise in connexion with the working use maintenance or management of the tramroad. Agreements between Council and others.

16. The Council shall not run any train or engine upon the tramroad at a rate of speed exceeding five miles an hour when such train or engine is within the distance of three hundred yards of a level crossing over a public road where no gates are erected and maintained across the tramroad. As to speed when approaching level crossing.

17. The tramroad shall (save as in section 51 of the Pontypridd and Rhondda Water Act 1910 or in this Act expressly provided) be used exclusively for the purposes of and in connexion with the works authorised by the Act of 1902 or this Act. As to user of tramroad.

18. Subject to the provisions of this Act the tramroad shall for all purposes be deemed to form part of the water undertaking of the Council. Tramroad to form part of water undertaking.

19. Subject to the provisions of this Act the Council and their officers contractors servants and agents and any company authority or person with whom they shall have entered into an agreement for the running over or use of the tramroad may Running powers over tramroad or railway.

A.D. 1912. run over and use with locomotive-engines carriages waggon and trucks upon such terms and conditions as may be agreed or failing agreement settled by arbitration in accordance with the provisions of the Arbitration Act 1889 the following tramroad or railway (namely):—

An existing tramroad or railway (being an extension of the tramroad or railway belonging to the Company of Proprietors of the Aberdare Canal Navigation from Hirwain to its terminus near Penderyn) from the said terminus to the junction thereof with the tramroad;

together with all ways sidings approaches points signals water watering places works and conveniences on or connected with the said tramroad or railway. Provided that in the exercise of the powers conferred upon them by this section the Council shall not unreasonably interfere with or interrupt the working of the traffic on the said tramroad or railway.

For protection of Breconshire County Council.

20. The following provisions for the protection and benefit of the Breconshire County Council (in this section called "the county council") shall unless otherwise agreed between the Council and the county council apply and have effect:—

- (1) So long as the tramroad shall be maintained so as to cross on the level the main road leading from Brecon to Hirwain at the three places indicated upon the deposited plans and sections or any of such places the Council shall pay to the county council the yearly sum of four pounds ten shillings:
- (2) No such level crossing shall be maintained so as to cross the said main road at a more acute angle than forty-five degrees:
- (3) The Council shall to the reasonable satisfaction of the county roads surveyor for the county of Brecon (in this section referred to as "the surveyor") maintain a suitable fence on each side of the said main road at each such level crossing extending for at least 50 yards in both directions from such crossing and also a similar fence on the easterly side of the said main road between points 77 chains or thereabouts and 95 chains or thereabouts respectively measured from the commencement of the tramroad and shall also maintain at each side of every such level crossing good and sufficient gates so arranged as to shut off

the tramroad from the road and also to shut off the road from the tramroad when a train or tramcar is passing : A.D. 1912.

- (4) The Council shall provide and fix upon each locomotive used and running upon the said tramroad a bell which shall be continually rung while such locomotive is in use and running in order that proper and sufficient warning of the approach of a train or tramcar shall be given to all traffic using the said road :
- (5) During the running of any train or tramcar after dark the Council shall provide each such train or tramcar with proper and sufficient regulation lights one of such lights to be a white light and affixed to the front of the locomotive or tramcar and the other to be a red light and to be affixed to the tail of the train or tramcar both such lights to be kept continuously and sufficiently lighted :
- (6) The speed of every train or tramcar when approaching a crossing shall be slowed down when within one hundred yards of such crossing and its passage signalled by whistling or by the ringing of a bell :
- (7) The Council shall at their own cost and expense maintain and keep in good and substantial repair the said fences gates and crossings :
- (8) If at any time it shall in the opinion of the county council become necessary or desirable to widen the said main road at any point where the tramroad crosses such road the Council shall if and when called upon to do so by the county council remove during the course of such widening the line of rails crossing the said road and the site of such proposed widening and the gates at each side of such crossing and shall after such widening has been completed at their own cost and expense replace the said line of rails and gates to the reasonable satisfaction of the surveyor :
- (9) Subject as aforesaid the provisions of sections 47 and 48 of the Railways Clauses Consolidation Act 1845 and of sections 5 and 6 of the Railways Clauses Act 1863 shall apply to any level crossing of any road by the tramroad sanctioned by this Act or any tramroad or

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railway run over or used by the Council under the powers of this Act or of the Act of 1902 and to the Council in relation to any such level crossing:

(10) If any difference or dispute shall arise between the Council and the county council with reference to the provisions of this section or any of them the same shall be determined by the arbitration of a single arbitrator to be appointed failing agreement by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration:

(11) The indenture dated the 14th day of February 1906 and made between the county council of the one part and the Council of the other part is hereby cancelled and annulled.

For protection of
Viscount
Tredegar.

21. For the protection of the Right Honourable Godfrey Charles Viscount Tredegar and his sequels in estate and of the trustees of the Tredegar Settled Estates and their successors (the owner or owners and trustees for the time being of such estates being together in this section referred to as "the owners") the following provisions shall unless otherwise agreed in writing between the Council and the owners have effect (that is to say):—

(1) Notwithstanding anything contained in this Act the Council shall not collect impound take use divert or appropriate for the purposes of their water undertaking any waters of the River Tringarth under the powers of the section of this Act of which the marginal note is "Temporary power to take waters" at any point in such river below the embankment of the Ystradfellte Reservoir being Reservoir No. 1 authorised by the Act of 1902 and notwithstanding anything contained in such section the Council shall not be entitled to exercise any powers of collecting impounding taking using diverting and appropriating the waters of the River Tringarth under such section after the completion of the said Ystradfellte Reservoir or after the 1st day of December 1913 whichever date shall first happen Provided that nothing contained in this subsection shall limit or affect the powers of the Council to collect impound take use

divert or appropriate waters under the provisions of the Act of 1902: A.D. 1912.

- (2) The owners shall be entitled to enforce the performance by the Council of their obligations under the provisions of the said section of this Act of which the marginal note is "Temporary power to take waters" and shall be entitled to a penalty as provided for by subsection (6) of such section as if they were specifically named therein in reference thereto:
- (3) The Council shall not under the powers of this Act purchase or acquire any lands or hereditaments of the owners except that the Council may acquire and the owners shall if so required by the Council according to their respective estates and interests grant to the Council a perpetual easement over or right of using such portion of the lands of the owners shown upon the deposited plans as may be reasonably necessary for the purposes of the tramroad and works described in the section of this Act of which the marginal note is "Power to maintain tramroad" and the provisions of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement shall apply to and in respect of the acquisition of such easement or right as fully as if the same were lands within the meaning of those Acts. On the granting of such easement the lease to the Council of the 14th day of February 1906 under which the tramroad was constructed and is used shall be surrendered and annulled:
- (4) The Council or any company body or person with whom they may enter into an agreement for the working of the traffic of the Council shall at the request of the owners at all reasonable times carry and convey over and along the tramroad and any tramroad or railway over which the Council are entitled to run under the provisions of this Act all goods minerals matters and things arising from upon or out of the estates of the owners or required for the working management or development of the said estates or for the use of the owners their lessees licencees and tenants. The rate or charge for the carrying or conveying of the said goods minerals matters and things by the Council shall be such as may be agreed

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between the owners and the Council or in default of agreement as may be settled by arbitration in manner herein-after mentioned. Provided that such rates shall in no case exceed the lowest rates for the time being charged by the Council in respect of any other traffic of the same or a similar class to any other company or person. Provided always that in the event of the Council being unable or unwilling to carry and convey such goods minerals matters and things as aforesaid over and along the tramroad then the owners their lessees licencees and tenants shall at all reasonable times be entitled to run over and use with locomotive-engines carriages waggon and trucks the tramroad for any of the purposes aforesaid upon such terms and conditions as to the cost of maintenance repair and upkeep as may be agreed or failing agreement settled by arbitration as herein-after provided and such owners lessees licencees and tenants shall be deemed to be a company or person with whom the Council shall have entered into an agreement for the running over or use of the tramroad within the meaning of the section of this Act of which the marginal note is "Running powers over tramroad or railway":

- (5) The owners their lessees licencees and tenants shall be entitled to make form work and maintain all such junctions with the tramroad as may be reasonably necessary under the superintendence and to the reasonable satisfaction of the engineer to the Council. Provided that seven clear days' notice of their intention to make any such junctions shall be given by the owners to the Council:
- (6) In running over and using the tramroad the owners their lessees licencees and tenants shall observe the reasonable rules and regulations of the Council and shall so work their traffic as to cause no avoidable interruption to any other traffic on the tramroad:
- (7) From and after the granting of the said easement or right and so long as the Council require to use or retain the tramroad they shall at all times to the reasonable satisfaction of the owners maintain the same in an efficient state of repair and in the event of the Council failing so to do it shall be lawful for

the owners to execute and do all such works and things at their own expense as may be reasonably necessary in order to put or maintain the tramroad in such state of repair as aforesaid: A.D. 1912.

- (8) Any dispute or difference which may arise between the Council and the owners under this section other than disputes to which the provisions of the Lands Clauses Acts apply shall be settled by arbitration the arbitrator to be agreed on between the parties in dispute or in default of agreement to be appointed on the application of either party after notice in writing to the other by the President of the Law Society and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

22. The following provisions for the protection and benefit of the owner or owners for the time being of the freehold estate known as the Abernant Estate in the parish of Ystradfellte in the county of Brecon and (except where otherwise expressly indicated) of Morgan Harris Whitting his successors and assigns or other the owner or owners of the freehold estate known as the Bodwigiad Estate in the same county all of whom are in this section referred to as "the owner" which expression means either or both of the said owner or owners as the case may require) shall unless otherwise agreed between the owner and the Council apply and have effect (that is to say):—

For protection of Morgan Harris Whitting and others.

- (1) Notwithstanding anything shown on the deposited plans the Council shall not for the purpose of the tramroad and works described in the section of this Act whereof the marginal note is "Power to maintain tramroad" be entitled to acquire under the provisions of this Act any greater or other estate in the property of the owner than an easement or right of using such property in perpetuity for the purpose of maintaining working and using the tramroad but the Council may purchase and the owner shall at the request of the Council sell and grant to the Council such easements or rights of using the said property as may be reasonably necessary for the purposes aforesaid:

- (2) The Council shall pay to the owner by way of purchase money or compensation for the rights and easements

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to be acquired from him under the provisions of this Act such an amount as may be agreed upon or in the event of difference as may be determined by arbitration under the provisions of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement:

- (3) The Council and any company body or person with whom they may enter into an agreement for the working of the traffic of the Council shall at the request of the owner at any reasonable time carry and convey over and along the tramroad from the northerly boundary of the enclosure numbered 16 in the parish of Penderyn on the deposited plans to the point known as Toryfoel Gate all goods minerals matters and things arising from upon or out of the said estates of the owner or either of those estates or required for the working management and development of the said estates or either of them or for the use of the owner and his lessees licencees and tenants The rate or charge for the carrying and conveying of the said goods minerals matters and things by the Council shall be such as may be agreed between the owner and the Council or in default of agreement as may be settled by arbitration in manner herein-after mentioned Provided always that in the event of the Council being unable or unwilling to carry and convey such goods minerals matters and things as aforesaid over and along the tramroad then the owner shall at all reasonable times be entitled to run over and use with engines and waggons the aforesaid portion of the tramroad for any of the purposes aforesaid upon such terms and conditions as to cost of maintenance repair and upkeep as may be agreed or failing agreement settled by arbitration as herein-after provided Provided further that for the protection and benefit only of the owner or owners for the time being of the said Abernant Estate the foregoing provisions of this subsection shall mutatis mutandis apply also in relation to the portion of the tramroad extending from the southerly boundary of the enclosure numbered 19 in the parish of Ystradfellte on the deposited plans to the northerly

boundary of the enclosure numbered 23 in that parish on those plans as if that portion of the tramroad were expressly referred to therein: A.D. 1912.

- (4) The owner shall be entitled under the superintendence and to the reasonable satisfaction of the engineer to the Council to make form work and maintain all such junctions with the tramroad as he may reasonably consider necessary for any purpose connected with his estate. Provided that twenty-eight clear days' notice of his intention to make any such junction shall be given by the owner to the Council:
- (5) In running over and using the tramroad the owner shall observe the reasonable rules and regulations of the Council and shall so work his traffic as to cause no avoidable interruption to any other traffic on the tramroad:
- (6) The owner shall at all times be at liberty to make form lay down work and maintain any road tramroad tramway railway cable or other work over under or across the tramroad which he may reasonably consider necessary for the working management and development of his estate. Provided that any works to be executed by the owner in carrying any road tramroad tramway railway cable or other work over under or across the tramroad or in making junctions therewith shall be so executed as not to stop or unreasonably interfere with the traffic on the tramroad. Before commencing any such works the owner shall give to the Council twenty-eight clear days' notice in writing of his intention to commence the same and such notice shall be accompanied by plans and sections showing the manner in which such works are proposed to be constructed. All such works shall be executed under the superintendence and to the reasonable satisfaction of the Council or their engineer:
- (7) Any subsidiary works the Council may require to construct on the estate of the owner in connexion with the tramroad shall be subject to the reasonable approval of the owner or his agent:
- (8) The Council shall effectually maintain in good repair the fences separating the tramroad from the adjoining lands of the owner and shall also maintain in good

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repair the existing crossing places and gates and stiles upon or adjoining the land of the owner :

(9) All walls hedges fences gates sewers drains pipes water supplies and other matters and things belonging to the owner which may be interfered with by the Council in maintaining the tramroad shall forthwith after such interference be made good by the Council who shall in such maintenance do as little damage as is reasonably possible to the said estates and to the user and enjoyment thereof and in addition the Council shall maintain and keep in good order and condition all existing ditches watercourses and drains upon along or across the land on which the tramroad is constructed :

(10) The Council shall maintain and keep the existing hedge abutting on the road leading from Ystradfellte to Penderyn in good order and condition to the reasonable satisfaction of the owner and shall from time to time prune plash and lay the same or such parts thereof as may be necessary to the like satisfaction :

(11) From and after the granting of the said easement or right and so long as the Council require to use or retain so much of the tramroad as is particularly specified in subsection (3) of this section they shall at all times to the reasonable satisfaction of the owner maintain the same in an efficient state of repair In the event of the Council failing so to do and in the event of the persons described as "the owners" in the section of this Act of which the marginal note is "For protection of Viscount Tredegar" failing to maintain the tramroad under the provisions of that section it shall be lawful for the owner to execute and do all such works and things at his own expense as may be reasonably necessary in order to put or maintain so much of the tramroad as aforesaid in such state of repair as aforesaid :

(12) The Council shall make full satisfaction to the owner and the tenants of his estate for any damage which may be sustained by him or them by reason of any horses cattle sheep or other animals straying or trespassing on the tramroad :

(13) The foregoing provisions of this section shall be in addition to and not in derogation from any other provisions of this Act or any Act incorporated therewith which may enure for the protection and benefit of the owner: A.D. 1912.

(14) Save as otherwise in this section expressly provided any difference or dispute which may arise touching the provisions of this section or as to anything to be done or not to be done thereunder shall be referred to arbitration the arbitrator being an engineer or other fit person to be agreed on between the parties in dispute or in default of agreement to be appointed on the application of either party after notice in writing to the other by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

PROVISIONS AS TO WATER SUPPLY.

23. The Council shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water. Council not bound to supply several houses by one pipe.

24. A notice to the Council from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Council. Notice of discontinuance.

25.—(1) The Council may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connexion disconnexion alteration and repair of pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in this Act referred to as "water fittings") to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination. Byelaws for preventing waste &c. of water.

(2) Such byelaws shall apply only in the case of premises to which the Council do in fact afford or are prepared on demand to afford a constant supply.

A.D. 1912.

(3) In case of failure of any person to observe such byelaws as are for the time being in force the Council may if they think fit after twenty-four hours' notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the Council as the water rates in respect of the premises are recoverable.

Detection of waste.

26.—(1) Subject to the provisions of the Waterworks Clauses Act 1847 the Council may for the purpose of preventing and detecting waste affix and maintain meters and similar apparatus on the service pipes and mains of the Council and stop-cocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose stop break up and interfere temporarily with public and private streets roads lanes footways sewers courts passages tramways gas or water pipes electric lines wires and apparatus The Council shall where necessary provide reasonable means of access for persons bonâ fide going to or coming from the houses in any street so stopped up.

(2) Provided that the Council shall not interfere with any electric lines wires or apparatus belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

Supply to house partly used for trade &c.

27. The Council shall not be bound to supply with water otherwise than by measure any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required.

Price of supply by measure.

28. The price to be charged for a supply of water by measure shall not exceed two shillings per thousand gallons.

Power to sell meters.

29. The Council may sell to any person supplied or about to be supplied by them with water meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit.

Notice to Council of connecting

30. Before any person connects or disconnects any meter by means of which any of the water of the Council is intended to be

or has been registered he shall give not less than twenty-four hours' notice in writing to the Council of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under the superintendence of any officer of or person authorised by the Council and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

A.D. 1912.
—
or discon-
necting
meters.

31.—(1) The Council may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such pipes valves cocks cisterns baths meters soil-pans waterclosets and other fittings as are required or permitted by their regulations and may provide all materials and work necessary or proper in that behalf and the reasonable charges of the Council in providing such materials and executing such work shall be paid by the person requiring the same.

Power to
supply fit-
tings.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Council as the actual owners thereof:

Provided as follows:—

(A) The Council shall so adjust the charges to be made by them for any such fittings or for the fixing repairing or removal thereof as to meet any expenditure by them under the powers of this section in connexion therewith (including interest upon any moneys borrowed for those purposes and all sums applied to sinking fund for repayment of moneys so borrowed):

(B) Every sum charged by the Council in respect of provision of such fittings or repairing fixing or removal thereof shall be clearly stated in every demand note delivered by the Council to the consumer:

A.D. 1912.

(c) The total sums expended and received by the Council in connexion with the purposes in this section mentioned in each year (including interest and sinking fund) shall be separately shown in the published accounts of the water undertaking of the Council for such year.

FINANCIAL AND MISCELLANEOUS.

Power to borrow.

32.—(1) The Council may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall pay off all moneys so borrowed within the periods (each of which is in this Act referred to as “the prescribed period”) mentioned in the third column of the said table (namely):—

1. Purpose.	2. Amount.	3. Period.
(A) For and in connexion with the construction and completion of the works authorised by the Act of 1902 and this Act.	£144,000 (including £50,000 as to which a temporary loan has been sanctioned by the Local Government Board).	Sixty years from the date or dates of borrowing.
(B) For and in connexion with the purchase of the lands and interests in land authorised by this Act.	The sum requisite	Sixty years from the date or dates of borrowing.
(C) For paying the costs charges and expenses of this Act as hereinafter provided.	The sum requisite	Five years from the passing of this Act.

(2) The Council may also with the consent of the Local Government Board borrow such further money as may be necessary for any of the purposes of this Act Any money borrowed under this subsection shall be repaid within such period (in this Act referred to as “the prescribed period”) as may be prescribed by the Local Government Board.

(3) In order to secure the repayment of the money borrowed or re-borrowed under this Act and the payment of interest thereon the Council may mortgage and charge the revenue of the water undertaking of the Council and the rates out of which the expenses of the execution by the Council of the provisions of the Act of 1902 relating to water and this Act are payable or either of those securities.

(4) Any moneys borrowed by the Council for the purposes but prior to the passing of this Act shall be deemed to have been borrowed under the powers of this Act. A.D. 1912.

33. The following provisions of the Act of 1902 shall with any necessary modifications extend and apply to this Act as if the same were re-enacted in this Act (namely):— Application of provisions of Act of 1902.

Section 60 (Certain regulations of Public Health Act 1875 as to borrowing not to apply);

Section 61 (Mode of raising money);

Section 62 (Provisions of Public Health Act as to mortgages to apply);

Section 65 (Sinking fund);

Section 66 (Protection of lender from inquiry);

Section 67 (Council not to regard trusts);

Section 68 (Appointment of receiver);

Section 70 (Return respecting sinking fund to Local Government Board);

Section 71 (Application of money borrowed);

Section 72 (Expenses of execution of Act);

Section 74 (Proceeds of sale of surplus lands to be treated as capital);

Section 75 (Audit of accounts);

Section 80 (Inquiries by Local Government Board);

Section 81 (Authentication and service of notices);

Section 82 (Recovery of penalties);

Section 83 (Application of section 265 of Public Health Act 1875).

34. The Council shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within one year or when the money is repaid by half-yearly instalments within six months from the date of borrowing the sum in respect of which the payment is made. Mode of payment off of money borrowed.

35.—(1) Section 64 (Mode of payment off of money borrowed) of the Act of 1902 shall be read and have effect as if Amendment of s. 64 of Act of 1902.

A.D. 1912. the words "shall as regards money" down to the end of the section were omitted therefrom and as if the following words were added in lieu thereof "shall be made within one year or when the money is repaid by half-yearly instalments within six months from the date of borrowing provided that notwithstanding anything contained in this Act it shall not be obligatory upon the Council to pay the first instalment or to make the first payment to the sinking fund for the repayment of money borrowed for the purposes marked (A) mentioned in the section of this Act the marginal note whereof is 'Power to borrow' until the completion of the works authorised by this Act or the thirty-first day of March one thousand nine hundred and eight whichever shall first occur."

(2) The provisions of this section shall not prejudice or affect anything done or suffered to be done under or in pursuance of the said section 64.

Power to
re-borrow.

36.—(1) The Council shall have power—

(A) To borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid;
OR

(B) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid— A.D. 1912.

- (A) By instalments or annual payments; or
- (B) By means of a sinking fund; or
- (c) Out of moneys derived from the sale of land; or
- (D) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

(5) Section 69 of the Act of 1902 is hereby repealed but without prejudice to anything done or suffered to be done thereunder.

37.—(1) Where the Council are authorised by any statutory borrowing power to raise money for the purpose of their water-works undertaking they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and raise the said money either wholly or partially by using for such purpose so much of any money for the time being forming part of a sinking fund as shall be available for the repayment of a loan which is secured by a charge on the same rate fund or revenue as would be specifically chargeable as the security for the repayment of a loan under the statutory borrowing power if the same were raised by the issue of a fresh security and which is not shown by the deed to be raised in exercise of a particular borrowing power specified therein.

Power to use sinking fund instead of borrowing.

(2) The Council when exercising the powers conferred on them by this section shall—

- (A) Withdraw from the sinking fund a sum equal to the amount of the statutory borrowing power proposed to be exercised by the user of moneys from such sinking fund :
- (B) Credit such sinking fund with the repayment of an amount of the principal moneys for the repayment of which the fund is established equal to the sum withdrawn from the sinking fund and thereupon the amount so credited shall be deemed to be principal moneys discharged by application of the sinking fund :

A.D. 1912.

(c) Debit the account of the statutory borrowing power proposed to be exercised with an amount of the principal moneys equal to the sum withdrawn from such sinking fund and thereupon the statutory borrowing power shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security and the provisions of any enactment as to the repayment and re-borrowing of sums raised under the statutory borrowing power shall apply thereto accordingly.

(3) The provisions of this section shall not apply to any sinking fund formed under the Local Loans Act 1875.

(4) The Council shall furnish all such information (if any) to the Local Government Board with regard to the exercise of the powers contained in this section as that Board shall require.

Power to invest all sinking funds in statutory securities.

38. When under the provisions of any Act of Parliament or of any Order confirmed by or having the effect of an Act of Parliament whether passed confirmed or made before or after the passing of this Act the Council are empowered or required to form a sinking fund for the payment off of money borrowed or payable by them they may (in addition to any other powers for the time being vested in them) invest such sinking fund and the interest on the investments of such sinking fund in statutory securities.

Confirmation of byelaws.

39. The provisions with respect to byelaws contained in sections 182 to 186 of the Public Health Act 1875 shall apply to byelaws made by the Council under the provisions of this Act.

Several sums in one summons.

40. Where the payment of more than one sum by any person is due under this Act or any Act or Order relating to the Council any summons or warrant issued for the purposes of such Act or Order in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

Informations by whom to be laid.

41. Save as herein expressly provided all informations and complaints under or in respect of the breach of any of the provisions of this Act or of the Act of 1902 may be made by an officer of the Council authorised in that behalf or by the clerk.

Penalties to be paid over to treasurer.

42. All penalties recovered on the prosecution of the Council or any officer of the Council on their behalf under the Act of 1902 or this Act or under any byelaw thereunder respectively

shall be paid to the treasurer and be by him carried to the credit of the fund or account out of which the expenses of the execution by the Council of the Act of 1902 and this Act are defrayed or to such other fund or account as the Council shall direct. A.D. 1912.

43. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate. Judges not disqualified.

44. Proceedings for the recovery of any demand made under the authority of the Act of 1902 or this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action. Recovery of demands.

45. All powers rights and remedies given to the Council by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Council or such committee (as the case may be) may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence. Powers of Act cumulative.

46. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council and may in the first instance be paid out of any moneys in their hands but ultimately (if the Council so determine) out of moneys to be borrowed under this Act. Costs of Act.

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